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CI2026-07228

Cornell University

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Index # : EF2026-0292

To: Respondent
From: Lauren Branchini, Title IX Coordinator
Date: January 16, 2025
Re.: NOTICE TO PARTIES UPON THE ISSUANCE OF A FORMAL COMPLAINT

Personal – Private

Dear Complainant and Respondent,

This letter serves as "Notice to the Parties Upon the Issuance of a Formal Complaint." Attached to this cover letter, you will find a copy of the signed Formal Complaint (94428) and the Policy 6.4 Informational Letter with detailed information about your rights and options under both that Policy and the *Procedures for Resolution of Reports Against Students Under Policy 6.4*.[1]

The Investigator assigned to this matter is Samantha Freeburn.

Jurisdiction

The University is exercising jurisdiction over this Formal Complaint pursuant to the Procedures for Resolution of Reports Against Students Under Cornell University Policy 6.4 because: (1) the Respondent is a student; and (2) the conduct is alleged to have occurred on any campus of the University, on any other property or facility used by it for educational purposes, or on property owned or controlled by a University-related residential organization, student organization, sorority, or fraternity that is officially recognized by or registered with the University; and/or (3) I have determined that the alleged prohibited conduct has occurred in the context of a University program or activity; and/or (4) the alleged prohibited conduct poses a substantial threat to the University's educational mission, such as an allegation of serious misconduct by a Cornell student against a non-Cornell community member, or to the health or safety of University community members, including potentially contributing to or creating a hostile environment on any campus of the University.

Preliminary Determination of Hearing Process A or Hearing Process B and Whether Title IX Applies to the Formal Complaint

[1] This Formal Complaint is being investigated and adjudicated under the August 5, 2024 *Procedures for Resolution of Reports Against Students Under Policy 6.4*. All Formal Complaints signed on or after August 5, 2024, will be investigated and adjudicated under those Procedures, regardless of the date of the incident. However, in evaluating the Formal Complaint, the adjudicator will use the definition of Prohibited Conduct in effect at the time of the reported incident.

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If the Formal Complaint is to be resolved through Hearing, such Hearing will be conducted in accordance with Hearing Process A.

Pursuant to Section 20 of the August 5, 2024, Procedures for Resolution of Reports Against Students Under Cornell University Policy 6.4, I have determined that Title IX applies to the Formal Complaint because (1) the alleged prohibited conduct meets at least one of the definitions for sexual harassment and sex/gender-based harassment, sexual assault, dating and domestic violence, or stalking, (2) the alleged prohibited conduct occurred in the University's education program or activity, (3) the alleged prohibited conduct occurred against a complainant in the United States; and (4) at the time of filing the Formal Complaint, the complainant is participating in or attempting to participate in the University's program or activity.

Thank you,

Lauren Branchini
Title IX Coordinator

Privacy. *Please note that, pursuant to Cornell Policy 6.4, and the applicable Procedures: The University encourages parties not to reveal any information they learn in the course of their participation in processes set forth in the applicable procedures, other than for the purpose of consulting with advisors and attorneys, and incidental to seeking support and advice from family, clergy, health professionals, and others playing a similar role. Parties may choose whether to disclose or discuss with others the outcome of a complaint under this policy. Students are prohibited from distributing documents obtained in the course of their participation in processes set forth in the applicable procedures other than for the purpose of consulting with an advisor; incidental to seeking support and advice from family, clergy, health professionals, and others playing a similar role; or as part of a civil, criminal, or administrative legal proceeding. By accepting the role of advisor, all advisors agree to comply with the rules and processes set forth in Policy 6.4 and these procedures, including rules regarding privacy. As appropriate, in a given case, a university official, such as the Title IX Coordinator, may issue an order restricting the parties from disclosing specific information. Members of the Cornell community who fail to follow an order of a university official may be found to have violated Cornell University's Campus Code of Conduct. Additionally, sharing private information in a manner that harms another individual may constitute retaliation prohibited under this policy.*

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FORMAL COMPLAINT OF A POLICY 6.4 VIOLATION

This Formal Complaint provides notice of allegation(s) of Prohibited Conduct in violation of Cornell University Policy 6.4 (Prohibited Bias, Discrimination, Harassment, and Sexual and Related Misconduct).

The purpose of this Formal Complaint is to advise the parties of the dates, times, and locations of alleged prohibited conduct, to the extent known at the time this Formal Complaint is signed.

Pursuant to Policy 6.4, and the corresponding Procedures, retaliation against individuals for engaging in protected activities is prohibited. Protected activities include making good-faith reports of Prohibited Conduct or participating in any investigation or proceeding under the Policy 6.4 Procedures.

This Formal Complaint is alleging Sexual Assault and Sexual Exploitation by multiple undergraduate students at Cornell, against another student. This Formal Complaint will be investigated pursuant to the August 5, 2024, Procedures for Resolution of Reports Against Students Under Cornell University Policy 6.4.

The University may hold the Respondents accountable for violations of Policy 6.4 and other policies that are not referenced in the Formal Complaint but are learned about from evidence, testimony, or admissions during the investigation and adjudication process.

[redacted] (the "Complainant") is an undergraduate student at Cornell University.

2. The Complainant is signing this statement because she believes the following individuals violated Cornell University Policy 6.4's prohibition against Sexual Assault and Sexual Exploitation on or about the night of October 19, 2024, and/or the early morning of October 20, 2024, at the Chi Phi Fraternity House (107 Edgemoor Lane, Ithaca, NY 14850).

3. Alleged Misconduct:

[redacted]

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[redacted]

g) [redacted] is accused of violating Cornell University's Policy 6.4 prohibition against Sexual Exploitation and Sexual Assault. Specifically, it is alleged that at the above date, time, and location, [redacted]

i. Intentionally viewed the Complainant in a state of undress without her permission; and

ii. Touched his nose to the Complainant's naked body and inhaled powdered substance off her body without affirmative consent, including lack of affirmative consent due to incapacitation.

Complainant Signature(s)

By signing below, I agree the above information is accurate, to the best of my knowledge:

Complainant Name [redacted] Signature [redacted] Date: 01-14-25

By signing below, I am indicating I wish to proceed with a formal investigation under Cornell University Policy 6.4:

Complainant Name: [redacted] Signature: [redacted] Date: 01-14-25

By signing below, I am indicating I am open resolving this matter through Alternate Resolution:

Complainant Name: [redacted] Signature [redacted] Date: 01-14-25
Please indicate:

_____ Restorative "Informal" Resolution

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_____ Negotiated "Formal" Resolution

✓ Unsure/Undecided

Formal Complaint on behalf of the University: Pursuant to the Procedures for the Resolution of Reports Against Students Under Policy 6.4: "Where the Title IX Coordinator determines that the University cannot honor a complainant's request that no Formal Complaint be pursued under these procedures, the Title IX Coordinator will promptly initiate the resolution process under these procedures by making a signed, written Formal Complaint on behalf of the University."

Title IX Coordinator: _____ Signature: _____ Date: _____
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